

M/S Ansal Properties And Infrastructure v. State of U.P.

Allahabad High Court · Division Bench · 15 May 2023 · 2023:AHC:105267-DB · Writ-C No. 15098 of 2019 · **Writ dismissed for want of prosecution.**

HEADNOTE

A 2019 writ over an electricity debit was listed with liberty to object under clause 6.5 of the U.P. Electricity Supply Code, 2005. On 15 May 2023 none appeared for the petitioner even on the revised call. The Division Bench dismissed the petition for want of prosecution without deciding the debit or any 6.5 objection.

FACTUAL SUMMARY

M/S Ansal Properties and Infrastructure petitioned the Allahabad High Court in 2019 against the State of U.P. and others over an electricity account debit. On 2 May 2019, instructions showed the amount had already been debited. Two weeks were allowed for a counter affidavit, and the petitioner was permitted to object under clause 6.5 of the U.P. Electricity Supply Code, 2005, any such objection to be decided within two weeks. The writ then remained pending until 2023.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

The writ petition is dismissed for want of prosecution after none appeared for the petitioner even in the revised call, without any determination of the electricity debit or any clause 6.5 objection. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEBIT FROM THE PETITIONER'S ACCOUNT AND ANY OBJECTION UNDER CLAUSE 6.5 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The 2019 listing order permitted a 6.5 objection and a time-bound decision if filed; the 2023 dismissal did not reach that dispute.

¶ 1-2